HIGH COURT OF DELHI

APPELLATE JURISDICTION · SINGLE JUDGE

CS (OS) No. 1407 of 2010 **CNR: DHC010014072010**

Date: 28 January, 2011 *Citation: 2011:DHC:452*

CORAM: Hon'ble S. Ravindra Bhat, J.

Petitioner: Tata Sons Ltd.

- VERSUS -

Respondent: Greenpeace International & Another

DOMAIN: INTELLECTUAL PROPERTY & FREEDOM OF SPEECH **STATUS: Good Law (Binding IP Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

An interim injunction cannot be granted to suppress peaceful parody or social commentary. The use of a mark in a non-commercial game advocating environmental causes is protected speech under Article 19(1)(a) and is not trademark infringement.

STATUTES APPLIED: Section 29 Trade Marks Act, Article 19(1)(a)

DISPOSITION: INTERIM INJUNCTION AGAINST ENVIRONMENTAL PARODY REFUSED

EXECUTIVE RATIO SUMMARY:

Landmark intellectual property ruling holding that parody and critical commentary using a trademark in an environmental campaign is protected under free speech Article 19(1)(a) and does not constitute trademark infringement.

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